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LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	24CV434569	Sierra, et.al. v. FCA US, LLC, et. al.	See Line Item 1 below.
9:00 2 , 9	25CV461522	Yee, et.al, vs FCA US, LLC, et.al.	See Line Item 2 below
9:00 3	25CV461594	Alcantar v. General Motors, LLC	See Line Item 3 below.
9:00 4	25CV463716	JP Morgan Chase v. Nina Vo.	Defendant filed a motion to set aside default judgment. Plaintiff alleges that she was not properly served. Plaintiff filed no opposition to set aside motion. The motion to set aside judgment is GRANTED.
9:00 5 -6	25CV466493	Steven Noriega vs. Albertson's Company	Plaintiff's file a petition to compel responses to interrogatories. Court finds that responses to interrogatory 1 is complete. Court finds that interrogatories 16, 18, and 24 are not overbroad and are relevant. Court finds that interrogatories 41 and 42 are duplicative and have been satisfied. Court finds that interrogatories 17, 18, 22, 23, 25-27, and 31-35 are vague and ambiguous. Court GRANTS petition to compel interrogatories as to 16, 17, 18, 22,23, 24-27, and 31-35 are DENIED. Plaintiff files a petition to compel further production of documents. Court finds that Request for Productions 2, 3, and 4 have been responded to by Defendant. Court finds that Request for Productions 9,10, and 11 are overbroad. Court finds that Request for Productions 19, 20, and 21 are relevant. Court finds that requests for production of 30, 31, and 37 are overbroad and vague. Court GRANTS petition to produce documents from Requests 19, 20, and 21. Court DENIES petition to produce documents from Requests 2-4, 9-1, 19-21, and 30, 31, and 37.
9:00 7	25CV461594	Saigon Central Post, Inc. v. Birk's Incorporated.	See Line Item 7 below
9:00 8	2013-1-CV-256631	Cavalry SPV v. R. Enriquez	Case to be decided after oral argument.

Calendar Line 1

Case Name: *Sierra, et al. v. FCA US, LLC*

Case No.: 24CV434569

This is a lemon law action regarding the purchase of a used 2021 Jeep Cherokee. Defendant FCA US, LLC's ("FCA") motion for judgment on the pleadings as to the first cause of action for violation of Civil Code section 1793.1, subdivision (a)(2), the second cause of action for violation of Civil Code section 1793.1, subdivision (a)(3), the third cause of action for violation of Civil Code section 1793.2 and the fourth cause of action for violation of Civil Code sections 1791.1, 1794 and 1795.5 is GRANTED without leave to amend. (See *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 200-202 (stating that FCA is a vehicle manufacturer and that "the basic framework of the Song-Beverly Act distinguishes between new and used products and 'provides similar remedies in the context of the sale of used goods, except that the manufacturer is generally off the hook'... '[s]ection 1795.5 provides express warranty protections for used goods only where the entity selling the used product *issues an express warranty at the time of sale*'... the obligation to maintain adequate repair facilities lies with 'the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new)... under § 1795.5, 'only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods'").)

As to the fifth cause of action, FCA fails to make any argument. (See *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (stating that when a party "fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived"); see also *Arega v. Bay Area Rapid Transit Dist.* (2022) 83 Cal. App. 5th 308, 318 (stating same); see also *City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1099 (stating that courts "are not bound to develop [the parties'] arguments for them").) Accordingly, FCA's motion for judgment on the pleadings as to the fifth cause of action for fraudulent inducement—concealment is DENIED.